

Opinion of the Court

vided that the validity of any monopoly should be determined in accordance with the common law, patent litigation had remained within the jurisdiction of the Privy Council until 1752 and hence without the option of a jury trial. E. Walterscheid, *Early Evolution of the United States Patent Law: Antecedents* (Part 3), 77 J. Pat. & Tm. Off. Soc. 771, 771–776 (1995). Indeed, the state of patent law in the common-law courts before 1800 led one historian to observe that “the reported cases are destitute of any decision of importance At the end of the eighteenth century, therefore, the Common Law Judges were left to pick up the threads of the principles of law without the aid of recent and reliable precedents.” Hulme, *On the Consideration of the Patent Grant, Past and Present*, 13 L. Q. Rev. 313, 318 (1897). Earlier writers expressed similar discouragement at patent law’s amorphous character,⁶ and, as late as the 1830’s, English commentators were irked by enduring confusion in the field. See Dutton, *supra*, at 69–70.

Markman seeks to supply what the early case reports lack in so many words by relying on decisions like *Turner v. Winter*, 1 T. R. 602, 99 Eng. Rep. 1274 (K. B. 1787), and *Arkwright v. Nightingale*, Dav. Pat. Cas. 37 (C. P. 1785), to argue that the 18th-century juries must have acted as definers of patent terms just to reach the verdicts we know they rendered in patent cases turning on enablement or novelty. But the conclusion simply does not follow. There is no more reason to infer that juries supplied plenary interpretation of written instruments in patent litigation than in other cases implicating the meaning of documentary terms, and we do know that in other kinds of cases during this period judges,

⁶ See, e. g., *Boulton and Watt v. Bull*, 2 H. Bl. 463, 491, 126 Eng. Rep. 651, 665 (C. P. 1795) (Eyre, C. J.) (“Patent rights are no where that I can find accurately discussed in our books”); Dutton, *supra* n. 4, at 70–71 (quoting Abraham Weston as saying “it may with truth be said that the [Law] Books are silent on the subject [of patents] and furnish no clue to go by, in agitating the Question What is the Law of Patents?”).